

**PLAINTIFFS' MOTION TO COMPEL DEPOSITION TESTIMONY FROM DENISE
WETZEL**

TENTATIVE RULING: The motion is DENIED.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

As framed by the Notice of Motion, Plaintiffs Sally Novotny Vaziri and Susan Novotny move for an order "compelling Denise Wetzel to deposition testimony [*sic*] regarding her license suspension." (See *id.* at 1:2-6.) Plaintiffs further move for an award of monetary sanctions against Defendant Odd Fellows Home of California.

"If a deponent fails to answer any question . . . the party seeking discovery may move the court for an order compelling that answer . . ." (Code Civ. Proc., § 2025.480, subd. (a).)

"It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]' [Citation.] A self-executing discovery system is 'one that operates without judicial involvement.' [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]" (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.)

Given the foregoing, it is axiomatic that a party who moves the Court to intervene in a discovery dispute has a threshold burden of describing the dispute with sufficient specificity to permit the court to understand precisely what information or materials the moving party seeks to discover. Here, neither the Notice of Motion, the Support Memorandum, nor the Proposed Order clearly identify the questions that Plaintiffs seek to compel answers to, or the information sought by the instant Motion.

The Separate Statement provides that "[d]uring Wetzel's deposition, she refused to answer three questions . . ." (Separate Statement at 5:26-27.) The Court, therefore, presumes that Plaintiffs, by the instant Motion, seek to compel the deponent to answer the questions set forth at 1:22-23, 4:25, and 5:12 of the Separate Statement.

Defendant opposes the Motion arguing that "[t]he disputed questions improperly invade Ms. Wetzel's constitutional right to privacy in medical and health-related information . . ." (Opposition at 2:14-16.) Counsel for Defendant raised the privacy objection, at deposition, in

response to each of the three subject questions. (See Separate Statement at 2:9-13, 5:1-4, and 5:13-15.)

“The state Constitution expressly grants Californians a right of privacy. (Cal. Const., art. I, § 1.) Protection of informational privacy is the provision’s central concern. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35.) In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (*Id.* at pp. 35–37.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (*Id.* at pp. 37–40.)” (*Williams v. Super. Ct.* (2017) 3 Cal.5th 531, 552.) “Courts must . . . place the burden on the party asserting a privacy interest to establish its extent and the seriousness of the prospective invasion, and against that showing must weigh the countervailing interests the opposing party identifies, as *Hill* requires. What suffices to justify an invasion will . . . vary according to the context.” (*Id.* at 557.)

As presented in the Separate Statement, the first question asks, “is the reason that you left your job at – at North Bay Healthcare over this license issue?” (Separate Statement at 1:22-23.) Plaintiffs provide *some* context for the question by arguing that “[a]ccording to the Accusation of the Board of Registered Nursing, Wetzel was subject to discipline because she reported to work at NorthBay Medical Center under the influence of alcohol and sleeping pills, with a blood alcohol content of .242 percent . . .” (Separate Statement at 6:23-26.) This is the extent of the information provided to the Court regarding the nature of this question.

Ms. Wetzel unquestionably enjoys a right to privacy which extends to her personal medical records and medical information. (See, e.g., *Davis v. Super. Ct.* (1992) 7 Cal.App.4th 1008, 1019 (*Davis*) [“[i]t has been held that a person’s medical profile is an area of privacy which cannot be compromised except upon good cause”].)

The Court finds, from the fact that the line of questioning relates to disciplinary action based on alcohol and sleeping pill usage, that the threatened intrusion into Ms. Wetzel’s medical records and/or medical information is serious. Ms. Wetzel has done nothing to invite the instant intrusion. While Ms. Wetzel is affiliated with a party, she is not, herself, a party to the litigation. Moreover, it does not appear that Ms. Wetzel was directly involved in the matters alleged in the operative Complaint. Her involvement is tangential, at best. Moreover, Defendant notes that the incident underlying the disciplinary action occurred in 2018. The Court notes that the events giving rise to the instant lawsuit are alleged to have occurred between August and September 2024.

Based on the foregoing, the Court entertains significant doubt as to the likelihood that matters relating to the incident leading to the disciplinary hearing are either relevant to the claims in this action or are likely to lead to the discovery of admissible evidence. This, likelihood, of course, is directly related to Plaintiffs’ interest in the subject discovery, which interest the Court must balance against Wentzel’s right to maintain her privacy in the information.

Plaintiffs argue that “Defendants . . . chose to make Wetzel the head nurse at their facility just two years after her license was reinstated, giving her significant authority over the personnel and conditions that Plaintiffs allege led to Mr. Russell Novotny's death. Therefore, testimony regarding the circumstances leading to Wetzel's disciplinary hearing, how it may have affected her employment and fitness, whether Defendants were on notice of Wetzel's licensure issues and history of substance abuse, and what Defendants' hiring process entails are all relevant.” (Separate Statement at 6:27-7:4.) Plaintiffs fail, however, to provide the Court, through the Separate Statement, with any information regarding: (1) the nature of Wetzel's job at North Bay Healthcare; (2) when she chose to end that employment; (3) how the grounds for her decision to leave that position relate to any of “[a] the circumstances leading to Wetzel's disciplinary hearing, [b] how it may have affected her employment and fitness, [c] whether Defendants were on notice of Wetzel's licensure issues and history of substance abuse, [d] what Defendants' hiring process entails”; and/or (4) when Wetzel was reinstated. (See Cal. Rules of Court, rule 3.1345, subd. (c) [“[t]he separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response”].) Based on the foregoing, the Court does not find that Plaintiffs' interest in discovering the information outweighs Wetzel's interest in maintaining her privacy in and to the information.

The Court is unable to meaningfully interpret the other two questions based on the information identified. The second question identified in the Separate Statement asks, “[i]s that an accurate statement of what happened?” (*Id.* at 4:25.) The third question identified in the Separate Statement asks, “[y]our story, what do you mean by your story?” (*Id.* at 5:12.) The Separate Statement contains no discussion of the context of either question, and no explanation or discussion regarding the nature of the information sought to be discovered thereby.

Plaintiffs provide limited context by way of argument through the Support Memo. (See *id.* at 8:2-14.) The arguments are not sufficient, however, to permit the Court, with any confidence, to understand precisely what information is sought. The only portions of the deposition transcript cited in support of these arguments are the actual questions, providing the Court with no further context. As noted above, “[t]he separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” (Cal. Rules of Court, rule 3.1345, subd. (c).) Moreover, it is not the Court's obligation to search the 174-page deposition transcript in an effort to locate context sufficient to understand what information is sought by these two questions. (See *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal. App. 4th 927, 934 [“Rules of Court rule 3.1113 rests on a policy-based allocation of resources, preventing the trial court from being cast as a tacit advocate for the moving party's theories by freeing it from any obligation to comb the record and the law for factual and legal support that a party has failed to identify or provide”].)

Based on the foregoing, the Motion is DENIED.

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In The Matter of Wyatt Steven Lang

26CV000718

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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In The Matter of Blanca Cynthia Loyola

26CV001220

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.